

The Home Secretary (Prison) vs H. Nilofer Nisha on 23 January, 2020

Equivalent citations: AIR ONLINE 2020 SC 58, (2020) 2 SCALE 457

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Bench: Deepak Gupta, S. Abdul Nazeer

REPORTABLE

IN THE SUPREME COURT OF INDIA

CRIMINAL APPELLATE JURISDICTION

CRIMINAL APPEAL NO(S). 144 OF 2020

(@ SPECIAL LEAVE PETITION (CRL) NO(S). 626 OF 2020)

(@ SPECIAL LEAVE PETITION (CRL) D. NO. 18046 OF 2019)

THE HOME SECRETARY (PRISON) & ORS. ...APPELLANT(S)

VERSUS

H. NILOFER NISHA ...RESPONDENT(S)

WITH

CRIMINAL APPEAL NO. 145 OF 2020 (@ SPECIAL LEAVE PETITION (CRL) NO. 627 OF 2020)

(@ SPECIAL LEAVE PETITION (CRL) D. NO. 18016 OF 2019)

CRIMINAL APPEAL NO. 146 OF 2020 (@ SPECIAL LEAVE PETITION (CRL) NO. 7697 OF 2019)

CRIMINAL APPEAL NO. 147 OF 2020 (@ SPECIAL LEAVE PETITION (CRL) NO. 6159 OF 2019)

CRIMINAL APPEAL NO. 148 OF 2020 (@ SPECIAL LEAVE PETITION (CRL) NO. 11494 OF 2019)

JUDGMENT

Deepak Gupta, J.

Delay condoned.

2. Leave granted.

3. The main issue which arises for decision is as follows:

"Whether a writ of habeas corpus would lie, for securing release of a person who is undergoing a sentence of imprisonment imposed by court of competent jurisdiction praying that he be released in terms of some Government orders / Rules providing for pre-mature release of prisoners?"

4. At the outset, we may mention that on 17.10.2019 we had framed two issues. We have reframed the first issue and on closer examination we are of the view that the second issue does not arise for decision in this case.

5. The Governor of Tamil Nadu exercising powers under Article 161 of the Constitution of India got issued G.O.(Ms.) No.64 dated 01.02.2018 through the Home (Prison-IV) Department, Government of Tamil Nadu wherein a Scheme was framed for considering the cases of pre-mature release of convicted prisoners on the occasion of the Birth Centenary of Shri M.G. Ramachandran, former Chief Minister of Tamil Nadu. The relevant portion of the Scheme reads as follows:

"5. The Government after careful examination have decided to frame the following guidelines for considering the cases of life convict prisoners for releasing them prematurely under Article 161 of the Constitution of India, in commemoration of the Birthday Centenary of 'Bharat Ratna', Puratchi Thalaivar Dr. M. G. Ramachandran, former Chief Minister of Tamil Nadu, based on the announcement of Hon'ble Chief Minister:

(I) The following committees are constituted for examining the premature release of the life convict prisoners, case to case basis, on the above lines.

(i) the State level committee headed by the Inspector General of Prisons and the Deputy Inspector General of Prisons (Hqrs), Legal officer, Administrative officer (Hqrs) shall be members of the committee.

(ii) the Second level/District committee wherein the Central Prisons/Special Prisons for Women located, headed by the Superintendent of Prisons of the concerned Central Prison and the Additional Superintendent of Prison, Jailor, Administrative Officer and Probation Officer shall be members of the committee."

6. Under the Scheme, a State level committee and District committees were constituted.